

24STCV13019 24STCV13019

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Case Number: 24STCV13019 Hearing Date: July 13, 2026 Dept: 1

Final

Approval of Class Action Settlement

Department SSC-1

Hon. Theresa M. Traber

Luckie

Nunez v. R.H. Peterson Co.

Case No.: 24STCV13019

Hearing Date:

July 13, 2026

TENTATIVE RULING

The Court hereby GRANTS final approval and awards/approves the following:

(1) \$460,750 for attorney fees to Class Counsel, Protection Law Group, LLP, Koul Law Firm, APC, and Majarian Law Group, APC; (2) \$25,000 for attorney costs to Class Counsel; (3) enhancement payments in the amounts of \$7,500 to Plaintiff Nunez and \$10,000 to Plaintiff Mancia; (4) \$77,752.50 (75% of \$103,670 PAGA penalty) to the LWDA; and (5) \$7,990 for settlement administration costs to Apex Class Action, LLC.

Plaintiffs' counsel shall file a proposed Order and Judgment, consistent with this ruling containing all requisite terms, including the class definition, release language, and a statement that no class members requested exclusion. The Court orders class counsel to file a final report summarizing all distributions made pursuant to the approved settlement, supported by declaration. The Court sets a non-appearance date of _____ for review of the final report, which shall be filed at least five court days beforehand.

BACKGROUND

Plaintiffs Luckie Nunez and Elba Mancía sued their former employer, Defendant R.H. Peterson Co., for alleged wage and hour violations. Defendant is a designer and manufacturer of indoor and outdoor fire products such as grills and fire logs. Plaintiff seeks to represent a class of Defendant's current and former non-exempt employees.

On September 21, 2023, Plaintiff Mancía filed a PAGA Letter with the California Labor and Workforce Development Agency (LWDA). Thereafter, on or about November 29, 2023, Plaintiff Mancía filed a representative PAGA Action with the Los Angeles Superior Court, Case No 23STCV29113.

On May 23, 2024, Plaintiff Nunez commenced a putative wage and hour class action with the Los Angeles Superior Court, Case No. 24STCV13019.

On August 22, 2024, Plaintiff Mancía filed a First Amended Complaint in the Mancía Action adding class claims.

On October 14, 2024, the Court issued an order deeming the Mancía Action and the Nunez Action related, assigning both actions to Department 1, and designating the Nunez Action as the lead case.

On November 4, 2024, Plaintiff Nunez filed a PAGA Letter with the Labor and Workforce Development Agency. On January 17, 2025, Plaintiff Nunez filed a First Amended Class Action and Representative Action Complaint adding a cause of action under the Private Attorneys General Act.

On

August 20, 2025, the Parties attended mediation with Eve Wagne, Esq., which ultimately resulted in settlement. The terms of settlement are finalized in the long-form Joint Stipulation of Class Action and PAGA Settlement, a copy of which was filed with the Court on January 7, 2026.

On February

24, 2026, the Court granted preliminary approval of the settlement. Notice was given to the Class Members as ordered (see Declaration of Stacey Shim ("Shim Decl.")). Now before the Court is the Motion for Final Approval of the settlement.

SETTLEMENT

CLASS DEFINITION

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"Class" or "Class Members" means all current and former hourly-paid, non-exempt employees of Defendant who worked for Defendant in the State of California at any time during the Class Period.

(¶6)

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"Class Period" means the period from May 23, 2020, through October 27, 2025. (¶7)

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"PAGA Members" means all current and former hourly-paid, non-exempt employees of Defendant who worked for Defendant in the state of California at any time during the PAGA Period. (¶17)

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"PAGA Period" means the period from September 21, 2022, through October 27, 2025. (¶24)

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"Participating Class Members" means all Class Members who do not submit valid and timely Requests for Exclusion, regardless of whether the Participating Class Member actually receives the Notice or objects to the Settlement. (¶28)

TERMS
OF SETTLEMENT AGREEMENT

The essential terms are as
follows:

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The Gross Settlement Amount ("GSA") is \$1,382,250, non-reversionary. (¶14)

o Escalator: Defendant has represented there are approximately 48,500 Workweeks within the Class Period. Should the actual number of Workweeks increase by more than ten percent (10%) (i.e. by more than 4,850 Workweeks) Defendant shall have the option to either: (i) increase the Gross Settlement Amount on a pro-rata basis equal to the percentage increase in the number of Workweeks worked by the Class Members above 10% (for example, if the number of Workweeks increases by 11%, the Gross Settlement Amount will increase by 1%); or (ii) cut off the Class Period end date when it exceeds 53,350 Workweeks. In the event Defendant elects to cut off the end of the Class Period, the Parties shall notify the Court and obtain an order setting forth the amended Class Period prior to sending Notice to the Class. (¶42)

o At final approval, the settlement administrator represents that the total number of workweeks worked by Participating Class Members during the Class Period is 50,106, which did not trigger the escalator provision. (Shim Decl., ¶15.)

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The Net Settlement Amount
("Net") estimated at preliminary approval (\$754,840)
is the GSA minus the following:

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Up to \$460,750 (33 1/3%) for attorney fees (¶14);

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Up to \$25,000 for costs of litigation (Ibid.);

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Up to \$30,000 total [\$15,000 each] for a service award to each named Plaintiff (¶19);

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Up to \$7,990 for
settlement administration costs (§139); and

o

Payment of \$103,670 PAGA penalty (75% or
\$77,752.50 to the LWDA) (§123).

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Employer Taxes: The Gross

Settlement Amount is exclusive of employer share of any applicable payroll
taxes, and any such employer-side payroll taxes shall be paid by Defendant
separately and in addition to the Gross Settlement Amount, to the extent required
by law. (§114)

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There is no claim
requirement. (Notice pg. 3)

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Response Deadline. "Response

Deadline" means the date forty-five (45) days after the Settlement
Administrator mails Notice to Class Members and the last date on which Class
Members may submit Requests for Exclusion, written objections to the
Settlement, or Workweek Disputes. In the event the 45th day falls on a Sunday
or Federal holiday, the Response Deadline will be extended to the next day on
which the U.S. Postal Service is open. The Response Deadline for Requests for
Exclusion, Objections, or Workweek disputes, will be extended fifteen (15)
calendar days for any Class Member who is re-mailed a Notice by the Settlement
Administrator, unless the 15th day falls on a Sunday or Federal holiday, in
which case the Response Deadline will be extended to the next day on which the
U.S. Postal Service is open. The Response Deadline may also be extended by
express agreement between Class Counsel and Defendant. Under no circumstances,
however, will the Settlement Administrator have the authority to unilaterally
extend the Response Deadline. (§136)

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If ten percent (10%) or
more of the Class Members (rounded to the next whole number) elect not to

participate in the Settlement by properly and timely filing a Request for Exclusion, Defendant may, at its election, rescind the Settlement Agreement and all actions taken in furtherance of it will be thereby null and void. (§160)

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Individual Payment

Calculations. The Settlement Administrator will calculate the total Workweeks for all Participating Class Members by adding the number of Workweeks worked by each Participating Class Member during the Class Period. The respective Workweeks for each Participating Class Member will be divided by the total Workweeks for all Participating Class Members, resulting in the Payment Ratio for each Participating Class Member. Each Participating Class Member's Payment Ratio will then be multiplied by the Net Settlement Amount to calculate each Participating Class Member's estimate share of the Net Settlement Amount (the "Individual Class Payment"). The Individual Class Payments estimate indicated on the Notice are subject to change, depending on factors including how many Class Members become Excluded Class Members (resulting in their individual Workweeks being removed from the final Class Workweeks, thereby increasing each Participating Class Member's final Individual Class Payment). (§150.a)

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PAGA Payments: The

Settlement Administrator will calculate the total Workweeks for all PAGA Members by adding the number of Workweeks worked by each PAGA Member during the PAGA Period. The respective Workweeks for each PAGA Member will be divided by the total Workweeks for all PAGA Members, resulting in the Payment Ratio for each PAGA Member. Each PAGA Member's Payment Ratio will then be multiplied by the employee portion of the PAGA Payment to calculate each PAGA Member's estimated Individual PAGA Payment. PAGA Members shall receive their Individual PAGA Payment regardless of whether they properly and timely deliver a Request for Exclusion to the Settlement Administrator. (§150.b)

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Tax Allocation. All Individual Settlement Payments will be allocated as follows: twenty percent (20%) of each Individual Class Payment will be allocated as wages, forty percent (40%) shall be allocated as interest, and forty percent (40%) shall be allocated as penalties. Each Individual PAGA Payment will be allocated 100% as Penalties. (§150.c)

Funding of Settlement. Within thirty (30) calendar days of the Effective Date of the Settlement, Defendant will deposit the Gross Settlement Amount and all applicable employer-side payroll taxes into a Qualified Settlement Fund ("QSF") to be established by the Settlement Administrator. Defendant shall provide all information necessary for the Settlement Administrator to calculate necessary payroll taxes including its official name, 8-digit state unemployment insurance tax ID number, and other information requested by the Settlement Administrator, no later than seven (7) calendar days of the Effective Date. (¶43)

Distribution. Within fourteen (14) calendar days of the funding of the Settlement, the Settlement Administrator will issue payments for: (a) Individual Class Payments and Individual PAGA Payments; (b) the PAGA Payment to the Labor and Workforce Development Agency; (c) the Plaintiffs' Service Payment; (d) Class Counsel's Fees and Costs and (e) Settlement Administration Costs. (¶44)

Uncashed

Settlement Checks: Any checks issued by the Settlement Administrator to Participating Class Members and PAGA Members will be negotiable for at least one hundred eighty (180) calendar days. If a Participating Class Member or PAGA Member does not cash his or her Settlement Check or PAGA payment check within 180 days, the uncashed funds, subject to Court approval, shall be distributed to the Controller of the State of California to be held pursuant to the Unclaimed Property Law, California Civil Code §1500, et. seq. for the benefit of those Participating Class Members and PAGA Members who did not cash their checks until such time that they claim their property. (¶64)

Apex Class

Action Administration will act as administrator for the settlement. (¶38)

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The proposed Settlement

Agreement was submitted to the LWDA on January 7, 2026. (Chuman Decl. ISO Prelim, Exhibit 4.)

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Releases:

o Releases

by Participating Class Members: After the Judgment is final and upon the complete funding of the Gross Settlement Amount and all applicable employer-side payroll taxes by Defendant, Participating Class Members shall fully release and discharge the Released Parties from the Released Class Claims that arose during the Class Period. This release shall be binding on all Participating Class Members. (§69) "Released Class Claims" means claims, rights, demands, liabilities and causes of actions that are alleged, or that reasonably could have been alleged, based on the facts asserted in the operative complaints in the Action including, but not limited to, the following claims: (i) failure to pay all regular wages, minimum wages and overtime wages due; (ii) failure to provide meal periods or compensation in lieu thereof; (iii) failure to provide rest periods or compensation in lieu thereof; (iv) failure to provide complete, itemized, and accurate wage statements; (v) failure to provide timely pay wages during employment; (vi) failure to reimburse business-related expenses; (vii) failure to provide cool-down rest periods; (viii) failure to provide safe working conditions; and (ix) unfair business practices that could have been premised on the facts pled in the operative complaints. The Release of Class Claims shall apply to claims arising during the Class Period. (§32)

o Release

by the PAGA Members, State of California and LWDA: After the Judgment is final and upon the complete funding of the Gross Settlement Amount and all applicable employer-side payroll taxes by Defendant, all PAGA Members, the LWDA and the State of California, through Plaintiffs as its agents and/or proxies, shall release and discharge the Released Parties from the Released PAGA Claims that arose during the PAGA Period. The Parties intend for this PAGA settlement to have claim preclusion, issue preclusion, or otherwise bar representative action if an aggrieved employee (as defined by PAGA) were to bring a subsequent claim on behalf of the LWDA based on the same factual predicate as this action and covering the same time period. (§70) "Released PAGA Claims" means all claims for civil penalties under the California Labor Code Private Attorneys General Act of 2004 that were alleged, or reasonably could have been alleged, based on the facts alleged both in the PAGA Notices provided to the LWDA and the operative complaints, including but not limited to any and all claims based on such facts involving any alleged failure to pay minimum wages or overtime, failure to provide meal and rest periods, failure to provide accurate wage statements, failure to pay all wages due at separation, and failure to reimburse business expenses, including Labor Code sections 201, 202, 203, 210,

216, 223, 225.5, 226, 226.3, 226.7, 256, 510, 512,558, 558.1, 1174, 1194, 1197, 1197.1, 1198, 7 1198.5, 1199, 2699, 2699.3, 2802, 2810.5. This release shall apply to claims arising during the PAGA Period. (§33)

§ "PAGA

Notices" means the September 21, 2023, letter submitted to the LWDA by Plaintiff Elba Mancía and the November 4, 2024, letter submitted to the LWDA by Plaintiff Luckie Nunez. (§26)

o "Released

Parties" means Defendant R.H. Peterson Co. and each of its past, present and/or future, direct and/or indirect, officers, directors, members, managers, agents, representatives, attorneys, insurers, partners, investors, shareholders, administrators, parent companies, subsidiaries, affiliates, divisions, predecessors, successors, assigns, and joint venturers. (§34)

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Named Plaintiffs will also provide a general release and CC § 1542 waiver. (§71)

ANALYSIS OF SETTLEMENT AGREEMENT

A.

Does a presumption of fairness exist?

The Court preliminarily found in its Order of February 24, 2026 that the presumption of fairness should be applied. No facts have come to the Court's attention that would alter that preliminary conclusion.

Accordingly, the settlement is entitled to a presumption of fairness as set forth in the preliminary approval order.

B.

Is the settlement fair, adequate, and reasonable?

The settlement was preliminarily found to be fair, adequate and reasonable. Notice has now been given to the Class and the LWDA.

Reaction

of the class members to the proposed settlement.

Number of class members: 357 (Shim Decl., ¶5.)

Number of notice packets mailed: 357 (Id. at ¶7.)

Number of undeliverable notices: 5 (Id. at ¶9.)

Number of opt-outs: 0 (Id. at ¶11.)

Number of objections: 0 (Id. at ¶12.)

Number of participating class members: 357 (Id. at ¶14.)

Average individual payment: \$2,114.40 (Id. at ¶16.)

Highest individual payment: \$4,293.49 (Ibid.)

The

Court finds that the notice was given as directed and conforms to due process requirements. Given the reactions of the

Class Members and the LWDA to the proposed settlement and for the reasons set for in the Preliminary Approval order, the settlement is found to be fair, adequate, and reasonable.

C. Attorney Fees and Costs

Class

Counsel requests an award of \$460,750 in fees and \$25,000 in costs. (Memo ISO Final at 1:5-7.) The Settlement Agreement provides for up to \$460,750 (33 1/3%) in fees and \$25,000 in costs (¶4).

“Courts

recognize two methods for calculating attorney fees in civil class actions: the lodestar/multiplier method and the percentage of recovery method.” (Wershba v. Apple Computer, Inc. (2001) 91 Cal.App.4th 224, 254.) Here, class counsel request attorney fees using the percentage method, as crosschecked by lodestar. (Memo ISO Final at pp. 7-16.)

In

common fund cases, the Court may employ a percentage of the benefit method, as cross-checked against the lodestar. (Laffitte v. Robert Half Int'l, Inc. (2016) 1 Cal.5th 480, 503.) The fee request represents one-third of the gross settlement amount, which is the average generally awarded in class actions. (See In re Consumer Privacy Cases (2009) 175 Cal.App.4th 545, 558, fn. 13 ["Empirical studies show that, regardless whether the percentage method or the lodestar method is used, fee awards in class actions average around one-third of the recovery."].)

Class Counsel has provided information, summarized below, from which the lodestar may be calculated:

Firm

Rates

Hours

Totals

Protection Law Group

\$700

226.8

\$158,760.00

Koul Law Firm

\$750-800

214.5

\$164,130.00

Majarian Law Group

\$900

28.7

\$25,830.00

Totals

\$348,720.00

(Declaration of Heather Davis ISO Final, ¶¶55-57;
Declaration of Nazo Koulloukian ISO Final, ¶27; Declaration of Sahag Majarian
II ISO Final, ¶10.)

Counsel's percentage-based fee request is higher
than the unadjusted lodestar and would represent application of a multiplier of
approximately 1.32x.

Fee Split:

Counsel will share any attorneys' fee award granted in this case as follows:
50% to Protection Law Group, LLP; 25% to Koul Law Firm, APC; 25% to Majarian
Law Group, APC. Plaintiffs have been advised of and have consented to this in
writing. (Declaration of Nazo
Koulloukian ISO Final, ¶19.)

Here, the fee request represents a reasonable
percentage of the total funds paid by Defendant. Notice of the fee request was
provided to class members in the notice packet and no one objected. (Shim Decl., ¶12, Exhibit A.)

As

for costs, Class Counsel is requesting a cost amount of \$25,000. This equals the \$25,000 cap estimated
at preliminary approval, which was disclosed to Class Members in the Notice and
not objected to. (Shim Decl., ¶12, Exhibit A.)

Counsel represents that they
incurred actual costs totaling \$25,553.60, which include, but are not limited
to: filing and service fees, Case Anywhere, deposition transcript, mediation
fees, and expert fees. (Davis Decl. ISO Final, ¶65, Ex. 3; Koulloukian Decl.
ISO Final, ¶22, Exhibit 1; Majarian Decl. ISO Final, ¶11, Ex. A.) The costs
appear to be reasonable in amount and reasonably necessary to this litigation.

Based on the above, the Court
awards \$460,750

in fees and \$25,000 in costs.

D. Incentive Awards

The class representatives, Luckie Nunez and Elba Mancía, seek enhancement payments of \$15,000 each for their contributions to the action. (Memo ISO Final at 17:12-15.)

In connection with the final fairness hearing, named Plaintiffs must submit declarations attesting to why they should be entitled to an enhancement award in the proposed amount. The named Plaintiffs must explain why they “should be compensated for the expense or risk he has incurred in conferring a benefit on other members of the class.”

(Clark v. American Residential Services LLC (2009) 175

Cal.App.4th 785, 806.) Trial courts

should not sanction enhancement awards of thousands of dollars with “nothing more than pro forma claims as to ‘countless’ hours expended, ‘potential stigma’ and ‘potential risk.’

Significantly more specificity, in the form of quantification of time and effort expended on the litigation, and in the form of reasoned explanation of financial or other risks incurred by the named plaintiffs, is required in order for the trial court to conclude that an enhancement was ‘necessary to induce [the named plaintiff] to participate in the suit’” (Id. at 806-807, italics and ellipsis in original.)

Each Plaintiff represents that her contributions to this litigation include: providing information and documents from their employment, keeping in touch with their counsel and responding to them, assisting them in responding to discovery requests and preparing for mediation, and reviewing the settlement. Plaintiff Mancía also had her deposition taken in person at the office of Defendant’s attorneys. Plaintiff Nunez estimates spending 15 hours on the case, while Plaintiff Mancía estimates 30-35 hours. (Declaration of Luckie Nunez ISO Final, ¶¶6-9; Declaration of Elba Mancía ISO Final, ¶¶10-13.)

Based on the above, as well as the benefits obtained on behalf of the class, the recommendation is to grant the enhancement payments in the amounts of \$7,500 to Plaintiff Nunez and \$10,000 to Plaintiff Mancía.

E.

Settlement Administration Costs

The settlement administrator, Apex Class Action, LLC, is requesting \$7,990 for the costs of settlement administration. (Shim Decl., ¶19.) This equals the estimate of \$7,990 provided for in the Settlement Agreement (¶39) and disclosed to class members in the Notice, to which there were no objections. (Shim Decl., ¶12, Exhibit A.) Based on the above, the recommendation is to award costs in the requested amount of \$7,990.